7(D)- Model Amendment Letter for Extension of Delivery Period

Clause 15.3 of Section-5 Part A

Registered Acknowledgement Due

Address of the purchaser

To

M/s ……..

……

Sub : This office contract no…….. dated …… placed on you for supply of ……

Ref : 1. Your letter no…… dated …… requesting DP extension

2. This office letter no. …… dated …… intimating conditions for DP extension

3. Your letter no…….. dated …… accepting the conditions for DP extension

In your above letter under reference (1), you have asked for extension/ further extension of time for delivery/ execution/ installation/ commissioning. The terms and conditions for extension of delivery period were conveyed to you vide this office letter under reference (2).

In view of the circumstances stated in your above referred letter, and upon your unconditional acceptance of the terms and conditions of this extension vide your letter under reference (3), the time of delivery is hereby extended from _____ (last delivery period) to _____ (presently agreed delivery period) on the terms and conditions in letter under reference (2) above and agreed by you vide letter under reference (3) i.e.:

(a) Liquidated damages shall be levied in accordance with agreed clause 16.2 & 16.3 Section-5 Part A of terms and conditions of the tender/ PO.

(b) Notwithstanding any stipulation in the contract for increase in price on any ground, no such increase, whatsoever, which takes place after current last date of Delivery/ completion of work shall be admissible on such of the said goods as are delivered after the said date as per clause 12 Section- 5 Part A.

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(c) The prices during this extended delivery period shall be governed as per clauses 12 and 24 of Section-5 Part A and shall be finalized in accordance with current PO price or the current PO price with latest budget/ duty impact or the prices in the new tender (T.E. no. ……..) from the date of its opening, on whichever is lower basis.

The letters under reference above and this letter shall form part and parcel of agreement/ contract/ APO/ PO and all other terms & conditions of the contract remain unaltered.

Yours faithfully,

(……)

for and on behalf of……..

Copy to :

……..

……..

……..

(All concerned)

Note: - The entries which are not applicable for the case under consideration are to be deleted.

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7(E) – TENDER ACCEPTANCE LETTER FORMAT

TENDER ACCEPTANCE LETTER
(To be given on Company Letter Head)

Date:

To,

_____
_____
_____

Sub: Acceptance of Terms & Conditions of Tender.
Tender Reference No: _____

Name of Tender / Work: -

_____
_____
_____
_____
_____

Dear Sir,
1. I/ We have downloaded / obtained the tender document(s) for the above mentioned 'Tender/Work'
from the web site(s) namely:
_____
_____
as per your advertisement, given in the above mentioned website(s).

2. I / We hereby certify that I / we have read the entire terms and conditions of the tender documents from Page No. _____ to _____ (including all documents like annexure(s), schedule(s), etc .,), which form part of the contract agreement and I / we shall abide hereby by the terms / conditions / clauses contained therein.

3. The corrigendum(s) issued from time to time by your department/ organization too have also been taken into consideration, while submitting this acceptance letter.

4. I / We hereby unconditionally accept the tender conditions of above-mentioned tender document(s)/ corrigendum(s) in its totality / entirety.

5. I / We do hereby declare that our Firm has not been blacklisted/ debarred by any Govt.Department/ Public sector undertaking.

6. I / We certify that all information furnished by the our Firm is true & correct and in the event that the information is found to be incorrect/untrue or found violated, then your department/ organisation shall without giving any notice or reason therefore or summarily reject the bid or terminate the contract, without prejudice to any other rights or remedy including the forfeiture of the full said earnest money deposit absolutely.

Yours Faithfully
(Signature of the Bidder, with Official Seal)

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SECTION- 8
Bidder's profile & Questionnaire.

Tenderer / Bidder's Profile & Questionnaire

(To be filled in and submitted by the bidder)

A) **Tenderer's Profile**

1. Name of the Individual/ Firm: ……

2. Present Correspondence Address ……..……
……..……
……..……

Telephone No. …….. Mobile No. …….. FAX No. ……

3. Address of place of Works/ Manufacture
…….…….…… ……
……..……

Telephone No. ..…….. Mobile No. ……

4. State the Type of Firm: Sole proprietor-ship/partnership firm / (Tick the correct choice): Private limited company.

4.1 Whether MSE bidder:- Yes/No . **Social Category**: General or SC/ST or Women

5. Name of the sole proprietor/ partners/ Director(s) of Pvt. Ltd Co.:

S. No.	Name	Father's Name	Designation
1.			
2.			
3.			
4.			
5.			

6. Name of the person authorized to enter into and execute contract/ agreement and the capacity in which he is authorized (in case of partnership/ private Ltd company):

……
……..……

7. Permanent Account No. : ……

8. Details of the Bidder's Bank for effecting e-payments:

(a) Beneficiary Bank Name:……
(b) Beneficiary branch Name:……
(c) IFSC code of beneficiary Branch……..

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(d) Beneficiary account No.:……
(e) Branch Serial No. (MICR No.):……..

9. Whether the firm has Office/ works (i.e. manufacture of the tendered item) in Delhi? If so state its Address

……
……

10. GSTN Registration Number(s) of all units/business places of the bidder vide which he intends to execute the contract, if awarded.
GSTN1…….
GSTN2……
GSTN 3…… and so on

B) **Questionnaire**

1. Do you think any other detail/ material is required to complete the work specified in the specification? Yes/ No.

1.1 If Yes, Give details

……

……

2. Do you think any other item of work need be included in tender form to complete the work specified in the specification? Yes/ No.

2.1 If Yes, Give details

……

……

3. Kindly indicate the maximum Quantity of tendered material which you are capable of supplying within the scheduled delivery period.

Name of the tendered Item	Qty that can be supplied by the firm within scheduled delivery period.

4. Suggestion for improvement of the tender document.

……

……

……

Place…… Signature of contractor ……

Date …… Name of Contractor ……

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SECTION-9 Part-A

BID FORM

To From,

…… ……

<complete address of the purchaser><complete address of the Bidder>

……

…… ……

Bidder's Reference No:…….. …Dated……

Ref: Your Tender Enquiry No. ……dated ……

1. Having examined the above mentioned tender enquiry document including amendment/ clarification/ addenda Nos. ..... dated ……. ……the receipt of which is hereby duly acknowledged, we, the undersigned, offer to supply and deliver ..... in conformity with the said drawings, conditions of contract and specifications for the sum shown in the schedule of prices attached herewith and made part of the financial Bid.
2. Bid submitted by us is properly sealed and prepared so as to prevent any subsequent alteration and replacement.
3. We agree to abide by this Bid for a period of 180 days from the date fixed for Bid opening or for subsequently extended period, if any, agreed to by us. This bid shall remain binding upon us up to the aforesaid period.
4. We understand that you are not bound to accept the lowest or any bid, you may receive.
5. If our Bid is accepted, we will provide you with a performance guarantee from a scheduled bank (except co-operative bank) in India for a sum @ 5% of the Basic value of contract according to prevailing rate of applicable GST (Currently 18% GST) for the due performance of the contract.
6. If our Bid is accepted, we undertake to complete delivery of all the items and perform all the services specified in the contract in accordance with the delivery schedule specified in the Section-2 (Tender Information).
7. Until a formal Purchase Order of Contract is prepared and executed, this Bid together with your written acceptance thereof in your notification of award shall constitute a binding contract between us.

Dated: ..... day of ..... 20…

Signature …….

Witness

Name …….

Signature…….

In the capacity of …….

Name …….

Duly authorized to sign the bid for and on

Address .....

behalf of .....

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SECTION-9 Part-B

PRICE SCHEDULE

S.No	SoR Item Description	Total quantity Nos	Basic Unit Price excluding all taxes & charges	FFP&I charges		GST		Charges for extended warranty		All-inclusive Unit cost	Amount of Input tax Credit (ITC) to be availed by BSNL	Unit price excluding ITC amount (net unit cost to BSNL)	Total price inclusive of all levies and charges but excluding ITC (net total cost)	HSN for goods and SAC for services
				%Rate *	Amount	%Rate	Amount	%Rate	Amount					
1	2	3	4	5	6=5x4	7	8=7x(4+6)	9	10=9X(4+6)	11=4+6+8+10	12=8	13=11-12	14=3x13	15
1.1	Splicing Machine-Single Fiber	15												
1.2	Splicing Machine-Ribbon	2												
1.3	OTDR Type-1	8												
1.4	PON OTDR combo	3												

Other than above, any item Bidder to specify and quote in price bid.

Notes for bidder:

1. Bidder must mandatorily quote for all GST components (CGST, SGST, IGST) as required
2. The bidder who submits the offer with concessional Goods and Services Tax (GST) shall submit the proof of applicable concessional GST. In case the concessional GST is not creditable to BSNL it should be included in the price of the goods/services.
3. In case , dealer is registered under compounding scheme or any rule/notification where the BSNL is not eligible for input tax credit then the bidder should not disclose any amount in column 14 .
4. * %age Rate of FF & packing should be shown of Basic Unit Price excluding all taxes & charges (i.e as %age of Col.4).
5. The FF & packing amount quoted shall not be subject to change after bid evaluation/ ordering on account of change of Copper, Lead base price, changes in duties & taxes of item,etc.
6. Bidder must mandatorily mention full 8 digit HSN & 6 digit SAC numbers
7. The item wise evaluation and comparison of responsive bids shall be done on the basis of Net cost to BSNL quoted at Col.14 of the price bid.

Declaration by bidder

1. We hereby declare that in quoting the above prices, we have taken into account the entire credit on inputs available under the GST Act introduced w.e.f. 1 July 2017 and further extended on more items till date".

2."We hereby certify that HSN/ SAC shown in column 17 are correct & credit of GST for the amount shown in column 14 above are admissible as per GST Laws.

1. We indemnify BSNL from any claim/ penalties raised by Custom / GST authorities on account of wrong declarations during purchase/Import of any of above items

Name of the Bidder: